Keshav Kumar Jayant And 6 Others vs State Of Up And Another on 26 July, 2019

Author: Rajiv Joshi

Bench: Rajiv Joshi

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 72

Case :- APPLICATION U/S 482 No. - 28449 of 2019

Applicant :- Keshav Kumar Jayant And 6 Others

Opposite Party :- State Of Up And Another

Counsel for Applicant :- Rajesh K.S. Chaudhary

Counsel for Opposite Party :- G.A.

Hon'ble Rajiv Joshi,J.
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Heard Sri Rajesh K.S. Chaudhary, learned counsel for the applicants and learned AGA for the State.

Present application under Section 482 Cr.P.C. has been filed for quashing the case no. 390 of 2019 (Nisha Singh Vs. Keshav Kumar and others) under Section 12 of Protection of Women from Domestic Violence Act, 2005 (hereinafter referred to as the Act), P.S. Vijay Nagar Ghaziabad, District Ghaziabad and the order dated 01.05.2019 passed by the A.C.J.M., Court No.2, Ghaziabad, District Ghaziabad.

It reflects from the record that complaint was filed by the opposite party no.2-wife against her husband, father-in-law, mother-in-law and other family members under Section 12 of the Act, registered as Case No. 390 of 2019.

Contention of learned counsel for the applicants is that petition filed by wife under the Act arraying her husband and her parents in law as parties to the proceedings has also included all and sundry as respondent, the petition should be confined by the aggrieved person to her husband and her parents in law and should not be allowed to proceed against the other respondents.

Learned counsel for the applicants has placed reliance upon the judgment rendered by this Court in the case of Geeta Vs State of U.P., 2015 (1) ALJ 796.

Since, the Magistrate has issued notice to the applicants on 01.05.2019 calling them to file objection, it is open to the applicants to raise such objection before the Magistrate concerned, who shall consider the same and pass appropriate order in this regard.

With the aforesaid observation, present application stands disposed of.

Order Date :- 26.7.2019 Noman